

TAB 3



Board of Education Report

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File #: Rep-073-23/24, **Version:** 1

Approve the Redefinition of the 32nd Street USC Magnets Major Modernization Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

November 14, 2023

Facilities Services Division

Action Proposed:

Approve the redefinition of the 32nd Street USC Magnets (32nd St./USC) Major Modernization Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The Board of Education (Board) previously approved site due diligence, planning, and feasibility activities for the Project. The redefinition action, if approved, will incorporate the full scope, budget, and schedule required to address the most critical physical conditions and essential safety issues at the school site. The Project includes but are not limited to:

The temporary relocation of the 32nd St./USC Magnets programs off-site during construction due to inadequate space to construct interim housing on the site. As such, the Project will be implemented in two phases that include, but are not limited to:

Phase 1

- Temporarily relocate 32nd St./USC to the former and soon-to-be vacant Downtown Business Magnet (DBM) campus during construction.
- Provide and install two kindergarten classrooms in relocatable buildings and kindergarten play area at DBM.
- Reconfigure minor amount of demountable partitions, if necessary, at DBM.

Phase 2

- Construction of approximately (23) general and specialty classrooms and support spaces.
- Demolish (23) classrooms and restrooms in (13) uncertified relocatable buildings and (1) storage building.
- Painting the exterior of existing permanent buildings remaining after construction is complete.
- Addition of greening landscape, hardscape, and infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities.
- Improvements to ensure compliance with the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), local, state, and federal requirements.
- Relocate the 32nd St./USC program back to newly renovated campus once the Project is completed.

The budget for the redefined Project is \$107,959,859. Construction of the Phase 1 scope is anticipated to begin in the fourth quarter of 2025 and be completed in the third quarter of 2026. Construction of the Phase 2 scope on the 32nd St./USC campus is anticipated to begin in the third quarter of 2026 and be completed in the fourth quarter of 2028.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the Project including budget modifications.

Background:

On August 24, 2021, the Board adopted an update to the School Upgrade Program (SUP) to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals. The Implementation Plan included, among other things, the development of seven major modernization projects, one in each Board District.

On October 12, 2021, the Board approved the project definition for the due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget, and schedule for a major modernization project at 32nd St./USC. In the first quarter of 2022, staff commenced studying the site's physical conditions by gathering and analyzing significant data and information including, but not limited to, seismic and historic evaluations, site surveys and infrastructure analysis (including topographic, geological, and utility surveys), and educational programming.

32nd St./USC is located within the boundaries of Region South and Board District 1 (Dr. George McKenna) and provides Kindergarten - 12th grade programs including the Visual and Performing Arts Magnet Program for elementary students and Media Arts and Engineering Magnet Programs for the secondary students. The site spans 3.67 acres and has 13 portable buildings, 1 storage building, and 3 permanent admin/classroom buildings. The buildings were constructed between 1949 and 2010. As of the 2022-2023 Electronic Capacity Assessment Review (E-CAR), the school served approximately 890 students.

The former DBM campus is located at 1081 West Temple Street, Los Angeles CA 90012, in Region East, and Board District 2 (Dr. Rocio Rivas). The campus was vacated by Downtown Business Magnet High School in the Summer of 2022 and currently serves as interim space for Rise Kohyang High School operated by Bright Star Schools. A portion of the site houses KLCS Education Foundation (KLCS), which will remain in place while 32nd St./USC temporarily occupies the site.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on November 02, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

Expected Outcomes:

Approval of the proposed Project redefinition and amendment to the Facilities SEP to incorporate therein. The approval will enable staff to proceed with the implementation of the proposed Project.

The Project, once completed, will help ensure that students attending 32nd St./USC are provided with safe and healthy environments that promote learning. The proposed Project will remove relocatable buildings on site, providing 21st century general and specialty classrooms, upgrade site infrastructure, accessibility, landscaping, and hardscaping to improve the learning environment. The Project will also decrease the demand for repair and maintenance and alleviate the burden placed on school-site administration and custodial staff. While the projects are underway, the local economy will benefit from tax revenue and new jobs.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds and begin the environmental reviews and clearances, design, procurement, and other activities necessary to implement the proposed Project.

If staff's proposal is not approved, the activities discussed above will not commence and 32nd St./USC will continue to operate with buildings, grounds and site infrastructure that have critical physical conditions that limit or constrain program accessibility; or negatively impact the school's ability to deliver the instructional program or operate efficiently. Furthermore, students, staff, and the community will not benefit from the significant facilities improvements being proposed.

Policy Implications:

The proposal does not impact Los Angeles Unified policy. It furthers implementation of the update to the SUP to integrate Measure RR funding and priorities into its operational framework. Furthermore, the proposal is consistent with the District's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in the District's local bond measures K, R, Y, Q, and RR. The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by upgrading facilities to support the instructional program.

Budget Impact:

The budget for the Project is \$107,959,859. The Project will be funded by Bond Program funds targeted in the SUP for major modernizations, upgrades, and reconfigurations to school campuses.

The Project budget was prepared based on the current information known, and assumptions about the Project scopes, site conditions, and market conditions. The Project budget will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the Project.

Student Impact:

The Project, once completed, will help ensure that students attending 32nd St./USC are provided with a safe and healthy environment that promotes learning.

Equity Impact:

The intent of the major modernization project is to address buildings and grounds that pose a safety concern and have the greatest need for upgrades with emphasis placed on seismic safety, reducing Los Angeles Unified's reliance on relocatable buildings, and addressing the most critical/severe physical conditions. While the Project is extensive in nature, less critical items may not be addressed. This approach allows the District to reach more schools with the limited funding available.

Issues and Analysis:

32nd St./USC currently has 45 classrooms, which includes 23 classrooms in relocatable buildings. The Project will demolish the 23 relocatable classrooms and replace them with 23 general and specialty classrooms in a new permanent building(s).

The recommended scope, schedule and budget for the design and construction of the Project was developed based on lessons learned from developing previous modernization projects, the Core Principles to Scoping Major Modernization Projects (Core Principles), and DSA directives. Utilizing the Core Principles helps ensure a consistent, transparent, and equitable approach in the planning, design, and construction of major modernization projects. Staff applied the Core Principles and considered the school site's most critical and significant issues, the opportunity to make the greatest improvement to the school site with the least amount of impact to school operations and considers the future development and improvement of the site.

The Core Principles are as follows:

1. Buildings meeting Assembly Bill 300 criteria for seismic evaluation may be addressed, to the extent feasible, with a focus on those determined to have a high seismic vulnerability, through retrofit, removal, or seismic modernization, which will be determined based on an assessment of the seismic vulnerability of the building(s), the historic context of the building/site, actual or potential impact to the learning environment, site layout, and the approach that best ensures compliance with DSA requirements.
2. The buildings, grounds and site infrastructure that have significant/severe physical conditions that already do or are highly likely in the near future to pose a health and safety risk, or negatively impact a school's ability to deliver the instructional program and/or operate may be addressed by repair or replacement.
3. The District's reliance on relocatable buildings, especially for K-12 instruction, should be reduced.
4. Necessary and prioritized upgrades will be made throughout priority school sites in order to comply with the program accessibility requirements of the ADA Title II Regulations, and the District's Self-Evaluation and Transition Plan under Title II of the ADA.
5. The exterior conditions of the school site will be enhanced including landscape and hardscape improvements around new buildings and/or areas impacted by construction and the painting of building exteriors throughout the school site.
6. Outdoor learning environments will be developed where the site layout and project planning provide the opportunity.

The Project will be fully coordinated with other ongoing projects at the 32nd St./USC campus as they move forward.

The Office of Environmental Health and Safety will evaluate the Project in accordance with CEQA.

Attachments:

Exhibit A - BOC Resolution

File #: Rep-073-23/24, **Version:** 1

Link Materials:

Previously adopted Board Reports referenced in the Background section:

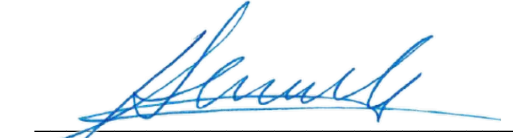
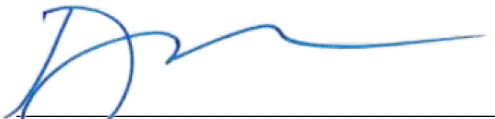
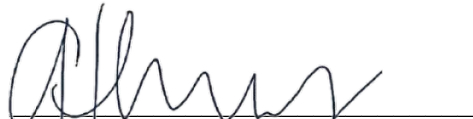
- Adopted August 24, 2021: Board Report No. 027-21/22
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- Adopted October 12, 2021: Board Report No. 085-21/22
<https://drive.google.com/file/d/1v7nv9Xldz7rz6Cxkvgm17t_lQETrBA2L/view?usp=sharing>

Informatives:

None

Submitted:

09/12/23

RESPECTFULLY SUBMITTED,
ALBERTO M. CARVALHO
Superintendent**APPROVED BY:**
PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel☒ Approved as to form.**APPROVED BY:**
KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division**REVIEWED BY:**
ROLBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.**PRESENTED BY:**
AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE**Margaret Fuentes, Chair**

LAUSD Student Parent

D. Michael Hamner, FAIA, Vice-Chair

American Institute of Architects

Samantha Rowles, Secretary

LAUSD Student Parent

Robert Campbell, Executive Committee

L.A. Co. Auditor-Controller's Office

Scott Pansky, Executive Committee

L.A. Area Chamber of Commerce

Neelura Bell

CA Charter School Association

Chad Boggio

L.A. Co. Federation of Labor AFL-CIO

Jeffrey Fischbach

CA Tax Reform Assn.

Aleigh Lewis

L.A. City Controller's Office

Patrick MacFarlane

Early Education Coalition

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RESOLUTION 2023-28**BOARD REPORT 073-23/24****RECOMMENDING BOARD APPROVAL OF THE REDEFINITION OF THE 32ND STREET USC MAGNETS MAJOR MODERNIZATION PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education (Board) approve the redefinition of the 32nd Street USC Magnets (32nd St./USC) Major Modernization Project (Project), as described in Board Report 073-23/24, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the Project including budget modifications; and

WHEREAS, The redefinition action, if approved, will incorporate the full scope, budget, and schedule required to address the most critical physical conditions and essential safety issues at the school site. The Project includes the temporary relocation of the 32nd St./USC Magnets programs off site during construction due to limited site areas. As such, the Project will be implemented in two phases that include but are not limited to:

Phase 1

- Temporarily relocate 32nd St./USC to the former Downtown Business Magnet (DBM) campus during construction.
- Provide and install two kindergarten classrooms in relocatable buildings and kindergarten play area at DBM.
- Reconfigure minor amount of demountable partitions, if necessary, at DBM.

Phase 2

- Construction of approximately (23) general and specialty classrooms and support spaces.
- Demolish (23) classrooms and restrooms in (13) relocatable buildings and (1) storage building.
- Painting the exterior of existing permanent buildings remaining after construction is complete.
- Addition of greening landscape, hardscape, and infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities.
- Improvements to ensure compliance with the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), local, state, and federal requirements.

RESOLUTION 2023-28**RECOMMENDING BOARD APPROVAL OF THE REDEFINITION OF THE 32ND STREET/USC MAGNETS MAJOR MODERNIZATION PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

- Relocate the 32nd St./USC program back to newly renovated campus once the Project is completed.

The budget for the redefined Project is \$107,959,859 and will be funded by Bond Program funds targeted in the School Upgrade Program for major modernizations, upgrades, and reconfigurations to school campuses. Construction of the Phase 1 scope is anticipated to begin in the fourth quarter of 2025 and be completed in the third quarter of 2026. Construction of the Phase 2 scope on the 32nd St./USC campus is anticipated to begin in the third quarter of 2026 and be completed in the fourth quarter of 2028; and

WHEREAS, 32nd St./USC is located within the boundaries of Region South and Board District 1 (Dr. George McKenna) and provides Kindergarten – 12th grade programs including the Visual and Performing Arts Magnet Program for elementary students and Media Arts and Engineering Magnet Programs for the secondary students. The site spans 3.67 acres and has 13 portable buildings, 1 storage building, and 3 permanent admin/classroom buildings. The buildings were constructed between 1949 and 2010. As of the 2022-2023 Electronic Capacity Assessment Review, the school served approximately 890 students; and

WHEREAS, The former DBM is located at 1081 West Temple Street, Los Angeles CA 90012, in Region East, and Board District 2 (Dr. Rocio Rivas). The campus was vacated by Downtown Business Magnet High School in the Summer of 2022 and currently serves as interim space for Rise Kohyang High School operated by Bright Star Schools. A portion of the site houses KLCS Education Foundation (KLCS) which will remain in place while 32nd St./USC temporarily occupies the site; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board of Education approve the redefinition of the 32nd St./USC Magnets Major Modernization Project with a budget of \$107,959,859 and amend the Facilities SEP to incorporate therein, as described in Board Report No. 073-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on November 02, 2023, by the following vote:

AYES: 13

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 1

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair